

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 14, 2026, AT 8:30 A.M.

declaration on or before **May 21, 2026**, that clarifies whether the settlement amount is \$415,000 or \$500,000 as both numbers are provided in the moving papers.

11. S-CV-0054070 GIUSTI, EMILY v. FORD MOTOR COMPANY

Plaintiffs' Motion for Attorney's Fees for Time Actually Expended and Reasonably Incurred

Preliminary Matters

Defendants' request for judicial notice is granted.

Ruling on Motion

Plaintiff's motion is granted.

Civil Code section 1794, subdivision (a) allows a buyer of a vehicle to bring an action for recovery of their damages and other legal and equitable relief for any failure to comply with obligations arising under the chapter. (Civ. Code § 1794, subd. (a).) If the buyer successfully prevails in their action, he or she may recover "attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (*Id.* at subd. (d).)

Here, plaintiff is the prevailing party because she achieved her litigation objectives. Defendants do not challenge this. Accordingly, the court must

make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of "showing that the fees incurred were 'allowable,' were 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount.' " " " " "

(*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 34.)

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Turning to the question of whether the number of hours expended were reasonable, the court has carefully reviewed the invoices attached as Exhibit A to the declaration of Jorge Acosta, which supports 6.7 hours by Courtney Perdue, 7.8 hours by Christopher Urner, 22 hours by Jorge Acosta, 1.3 hours by Alexandra Sloan, 14.1 hours by Wojciech Kowalczyk, and 1.3 hours by Mary Zazueta.

The court determines 5.3 hours by Courtney Perdue, 6.4 hours by Christopher Urner, 16.3 hours by Jorge Acosta, 1.3 hours by Alexandra Sloan, 14.1 hours by Wojciech Kowalczyk, and 1.3 hours by Mary Zazueta are reasonable.

The court must next address whether the requests for \$695 per hour by Courtney Perdue, \$525 per hour by Christopher Urner, \$450 per hour by Jorge Acosta, \$350 per hour by Alexandra Sloan, \$250 per hour by Wojciech Kowalczyk, and \$250 per hour by Mary Zazueta are reasonable. Determining the reasonable amount of attorneys' fees is known as the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler*, 22 Cal.4th at p. 1095.)

The court has carefully reviewed the declaration of counsel and finds the hourly rates of \$400 per hour by Courtney Perdue, \$400 per hour by Christopher Urner, \$350 per hour by Jorge Acosta, \$300 per hour by Alexandra Sloan, \$150 per hour by Wojciech Kowalczyk, and \$150 per hour by Mary Zazueta are reasonable for similar legal services within Placer County.

Accordingly, plaintiffs' motion is granted in the amount of reduced attorneys' fees in the amount of \$13,085 and costs in the amount of \$1,466.23 for a total amount of \$14,551.23.

12. S-CV-0054252 KUDER, ANNETTE v. GENERAL MOTORS

Defendant's Motion for Summary Judgment or, Alternatively, for Summary Adjudication

Preliminary Matters

Plaintiff's objections are overruled in their entirety.